

In moving to amend a pleading, the moving party “must” file a declaration that specifies: (1) the effect of the amendment, (2) why the amendment is necessary and proper, (3) when the facts giving rise to the amended allegations were discovered, and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324(b).)

Criteria (1) and (2) are satisfied, but plaintiff does not offer satisfactory explanation for waiting until February of 2026 to seek to make this amendment. It appears that plaintiff has long been aware of the transfers of property that serve as the basis for the amendment. Plaintiff explains that the matter was on appeal from 2024 to early 2025, with the matter returned to this court's jurisdiction in April 2025 with the remittitur. Plaintiff simply states in his declaration that he thereafter “undertook further legal research to determine the proper procedural vehicle for asserting a statutory claim based on property transfers made to avoid creditors.” There is no showing that plaintiff acted diligently in seeking to make this amendment. Though he was aware of this issue, when plaintiff filed a motion for leave to file a Third Amended Complaint in September of 2025, he did not seek to make this amendment at that time, instead waiting another five months to seek to make this amendment, with trial approaching. Plaintiff does not make an adequate showing regarding Rule 3.1324(b)(3) and (4).

Courts are bound to apply a policy of great liberality in permitting amendments to the complaint “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.) Prejudice exists where the amendment would result in a delay of trial, along with loss of critical evidence, added costs of preparation, increased burden of discovery, etc. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.) Here, there is no indication of loss of evidence, but trial set to begin September 8, 2026. Amending the complaint now would necessarily require continuance of trial, as the new party would need to be served, and would have 30 days to amend the complaint. Defendants indicate they would challenge the amended complaint. Amending the complaint now would add costs of preparation, as the parties have already been gearing up for trial, and certainly further discovery would need to be conducted. Adequate prejudice is shown. The court intends to deny the motion to amend. Plaintiff will need to pursue this claim in a separate action.

The motion for preliminary injunction is premised on plaintiff being granted leave to file the amended complaint with the cause of action under the UVTA. The leave to amend is denied, the motion for preliminary injunction must be denied as well.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 8-18-26.
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: ***Ermelinda Rodriguez v. Encompass Insurance Company***
Superior Court Case No. 24CECG02371

Hearing Date: August 19, 2026 (Dept. 502)

Motion: Respondent National General Insurance Company's and
Respondent Encompass Insurance Company's Motion to
Compel Arbitration and Appoint Arbitrator

Tentative Ruling:

To take off calendar. Neither party submitted a joint list of arbitrators for the court to select a list of five arbitrators within 15 days of the July 21, 2026 order, as per the July 21, 2026 order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

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